

Smt. Suman Tyagi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 May 2022 · WRIT - C No. 7889 of 2022 · **Writ disposed; Para 6.5 objection liberty; coercive action stayed**

HEADNOTE

Writ against a demand and permanent-disconnection warning disposed without any opinion on merits, with liberty to file a Para 6.5 objection before respondent no. 3 within four weeks, to be decided within four weeks after hearing, and with no coercive action on the demand for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Smt. Suman Tyagi challenged an order of 31 August 2021 by which respondent no. 3 warned her to deposit an electricity bill, failing which her connection would be disconnected permanently and a recovery notice under rule 5 of the U.P. Government Electrical Undertakings (Dues Recovery) Rules, 1958 would follow. She also sought a direction that a bill from 1 May 2020 be issued in accordance with law so she could pay it. The distribution licensee, through counsel and on instructions, said she could object to the demand and that the objection would be decided within a fixed time.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to an electricity demand under clause 6.5 as the course in a writ

HOLDING

Without expressing any opinion on the merits, the writ was disposed of with liberty to the consumer to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before respondent no. 3 within four weeks, together with a certified copy of the order. If the objection is so submitted, respondent no. 3 shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. For eight weeks, or until disposal of the objection, whichever is earlier, no coercive action shall be taken on the impugned demand. ¶ 2

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ challenging the demand and disconnection warning was disposed without a merits finding, leaving the consumer to file a Para 6.5 objection before respondent no. 3 within four weeks, to be decided within four weeks after hearing, with coercive action stayed in the meantime. ¶ 2

clause-6.5-statutory-remedy-disputed-bill The disputed electricity demand, including the warning of permanent disconnection and a rule 5 recovery notice, was left to an objection under Para 6.5 rather than decided in the writ. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED ELECTRICITY DEMAND AND THE PRAYER FOR A FRESH BILL FROM 1 MAY 2020

The Court expressed no opinion on the merits and left the demand to a Para 6.5 objection. ¶ 2

